

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No:

Date Filed:

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GLORIA WHITE and IVORY PACHECO,

Plaintiffs,

Plaintiffs designate
BRONX COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where cause of action
arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
DARNELL FORRESTER (Shield # 24294; Tax
950431) and POLICE OFFICER JIMMIE MOORE
(Shield # 25780; Tax # 925771),

The plaintiffs reside at:
Bronx County, New York

Defendants.

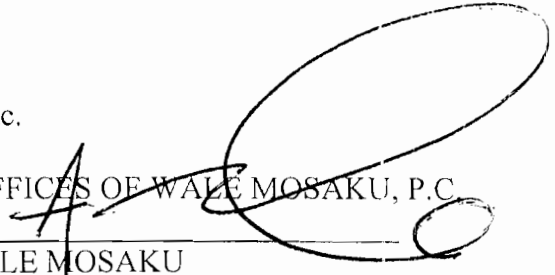
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
November 16, 2016

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.
GLORIA WHITE and IVORY PACHECO,

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
DARNELL FORRESTER (Shield # 24294; Tax
950431) and POLICE OFFICER JIMMIE MOORE
(Shield # 25780; Tax # 925771),

Defendants.

-----X

Gloria White and Ivory Pacheco (hereinafter "plaintiffs"), by their attorney(s) The Law Offices of Wale Mosaku, P.C., complaining of the defendants The City of New York, Police Officer Darnell Forrester (Shield # 24294; Tax # 950431) and Police Officer Jimmie Moore (Shield # 25780; Tax # 925771) (collectively referred to as "the Defendants"), upon information and belief, allege as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to each plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to each plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, each plaintiff was, and still is, a resident of the City of New York, who at all times material and relevant to this complaint resided, and still resides, in Bronx County, City and State of New York. Each plaintiff is an African American female of full age.

3. At all relevant times, defendants Police Officer Darnell Forrester (Shield # 24294; Tax # 950431) and Police Officer Jimmie Moore (Shield # 25780; Tax # 925771) (collectively referred to as "defendant officers"), of the New York City Police Department (hereinafter "NYPD"), upon information and belief, were, and still are, law enforcement officers in the employ of the NYPD.
4. At all times herein, the defendant officers were employed as law enforcement officers of the NYPD, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. Each plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on March 7, 2016, within ninety days after the malicious prosecution claim alleged in this complaint arose, a written notice of claim, sworn to by each plaintiff and/or her representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff Gloria White's claim was

- assigned Claim No. 2016PI008513. Plaintiff Ivory Pacheco's claim was assigned Claim No. 2016PI008514.
8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim(s) is/are based.
- FACTUAL ALLEGATIONS
10. On or about April 24, 2013, at approximately 11:20 p.m., in front of the plaintiffs' resident building described as 2778 Schley Avenue, Bronx, New York 10456, hereinafter "subject location"), the plaintiffs were illegally and unlawfully arrested by the defendant officers.
11. That immediately prior to the time of the plaintiffs' arrests, the defendant officers were brutally beating and assaulting the plaintiffs' son/brother, namely Moses Pacheco, Jr., in front of the doorway of the subject premises. The plaintiff Gloria White is the mother of Moses Pacheco, Jr. The plaintiff Ivory Pacheco is the sister of Moses Pacheco, Jr.
12. That prior to the time of the plaintiffs' arrests, the plaintiffs were observing the vicious beating, battery and assault that the defendant officers were perpetrating upon Moses Pacheco, Jr. That at that time, the plaintiffs were standing at least fifteen feet away from the defendant officers, but at separate locations.
13. At the time of the incident, the plaintiff Gloria White was standing by a three foot fence that is adjacent to a walkway that leads to the entrance of the subject premises. That as the defendant officers were beating and brutalizing her son, she asked them why they were engaging in their actions towards her son. That at that juncture approximately three to four officers approached Ms. White, threw her

- against the chain link fence, turned her around, and handcuffed her. There was absolutely no basis for the above-referenced officers to handcuff and arrest Ms. White.
14. At the time of the incident, the plaintiff Ivory Pacheco was attempting to film the unlawful actions of the defendant officers actions regarding her brother. That as Ms. Pacheco was attempting to do so, she was observed by defendant Police Officer Jimmie Moore (Shield # 25780; Tax # 925771).
15. That defendant Police Officer Jimmie Moore (Shield # 25780; Tax # 925771) approached Ms. Pacheco and asked her what she was doing. Ms. Pacheco ignored defendant Police Officer Jimmie Moore (Shield # 25780; Tax # 925771), and continued in her efforts to record the defendant officers illegal and unlawful actions regarding her brother.
16. That at that juncture, defendant Police Officer Jimmie Moore (Shield # 25780; Tax # 925771) punched Ms. Pacheco, and slammed her to onto the ground. Defendant Police Officer Jimmie Moore (Shield # 25780; Tax # 925771) then placed Ms. Pacheco in handcuffs.
17. Ms. Pacheco was pregnant at the time of the incident, and also recuperating from a prior work related injury to her right knee.
18. Following their arrests, the plaintiffs were taken to the Police Service Area ("PSA") 8 precinct, where they were both processed, or otherwise photographed and fingerprinted.
19. Subsequently the plaintiffs were both arraigned before a criminal court judge in Bronx County, where they were charged with the following offences: "Obstructing Governmental Administration" (P.L. 195.05); and "Disorderly Conduct" (P.L. 240.20(1)).
20. Upon arraignment, the plaintiffs each pleaded "not guilty", and were released upon their own recognizance.
21. Both plaintiffs were released from court at approximately 01:00 a.m. on April 26, 2013.

22. The criminal action(s) against the plaintiffs were dismissed on December 17, 2015, after each plaintiff was acquitted after trial.
23. The Bronx County Criminal Court Docket number for plaintiff Gloria White was 2013BX024108. The Bronx County Criminal Court Docket number for plaintiff Ivory Pacheco was 2013BX024109.

CAUSE(S) OF ACTION: MALICIOUS PROSECUTION UNDER 42
U.S.C § 1983/NEW YORK STATE LAW

24. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 23 of this complaint as though fully set forth herein.
25. The commencement and continued prosecution of the criminal judicial proceeding against each plaintiff, including the arrest, the imprisonment, and the charges against each plaintiff, were committed by or at the insistence of the defendant officers without probable cause or legal justification, and with malice.
26. That the defendant officers were directly involved in the initiation of criminal proceedings against each plaintiff.
27. That the defendant officers lacked probable cause to initiate criminal proceedings against each plaintiff.
28. That the defendant officers acted with malice in initiating criminal proceedings against each plaintiff.
29. That the defendant officers were directly involved in the continuation of criminal proceedings against each plaintiff.
30. That the defendant officers lacked probable cause in continuing criminal proceedings against each plaintiff.
31. That the defendant officers acted with malice in continuing criminal proceedings against each plaintiff.
32. That the defendant officers misrepresented and falsified evidence against each plaintiff throughout all phases of the criminal proceedings.

33. That the defendant officers misrepresented and falsified evidence against each plaintiff to the prosecutors in the Bronx County District Attorney's office.
34. That the defendant officers withheld exculpatory evidence from the prosecutors in the Bronx County District Attorney's office.
35. That the defendant officers did not make a complete statement of facts to the prosecutors in the Bronx County District Attorney's office.
36. The criminal judicial proceeding initiated against each plaintiff were dismissed on December 17, 2015, after each plaintiff was acquitted after trial, and terminated in each plaintiff's favor.
37. The arrest, imprisonment and prosecution of each plaintiff was/were malicious and unlawful, because each plaintiff had committed no crime and there was no probable cause to believe that each plaintiff had committed any crimes.
38. The defendant officers' actions were intentional, unwarranted and in violation of the law. The defendant officers had full knowledge that the charges made before the Court against each plaintiff were false and untrue.
39. As a consequence of the malicious prosecution by the defendant officers, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and her constitutional rights were violated.
40. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against the defendant officers and the City of New York, individually and severally.
41. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers' acts as described above.

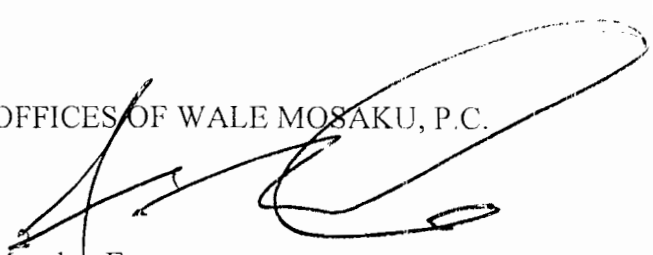
42. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

WHEREFORE, each plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
November 16, 2016

LAW OFFICES OF WALE MOSAKU, P.C.

By:



Wale Mosaku, Esq.
Attorney(s) for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.
GLORIA WHITE and IVORY PACHECO,
Plaintiffs,

-against-

VERIFICATION

THE CITY OF NEW YORK, POLICE OFFICER
DARNELL FORRESTER (Shield # 24294; Tax
950431) and POLICE OFFICER JIMMIE MOORE
(Shield # 25780; Tax # 925771),

Defendants.

-----X

I, WALE MOSAKU, an attorney at law, duly admitted to practice in the Courts of this
State of New York, affirm under penalties of perjury that:

I am the attorney for the plaintiffs in the above-entitled matter. That I have read the
foregoing COMPLAINT and know the contents thereof, and upon information and belief
deponent believes the matters alleged therein to be true.

The reason this verification is made by deponent and not by plaintiffs is that the plaintiffs
herein reside in a County other than the one in which I maintain my office.

The source of deponent's information and grounds of my belief are communications,
papers, reports and investigations contained in the file.

Dated: Brooklyn, New York
November 16, 2016

LAW OFFICES OF WALE MOSAKU, P.C.

BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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GLORIA WHITE and IVORY PACHECO,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE OFFICER DARNELL FORRESTER
(Shield # 24294; Tax # 950431) and POLICE OFFICER JIMMIE
MOORE (Shield # 25780; Tax # 925771),

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
